

**बिड दस्तावेज़ / Bid Document**

| बिड विवरण/Bid Details                                                                                                       |                                                                                                                             |
|-----------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------|
| बिड बंद होने की तारीख/समय /Bid End Date/Time                                                                                | 14-07-2026 21:00:00                                                                                                         |
| बिड खुलने की तारीख/समय /Bid Opening Date/Time                                                                               | 14-07-2026 21:30:00                                                                                                         |
| बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)                                                   | 180 (Days)                                                                                                                  |
| मंत्रालय/राज्य का नाम/Ministry/State Name                                                                                   | Bihar                                                                                                                       |
| विभाग का नाम/Department Name                                                                                                | Panchayat Raj Department Bihar                                                                                              |
| संगठन का नाम/Organisation Name                                                                                              | Panchayati Raj Department                                                                                                   |
| कार्यालय का नाम/Office Name                                                                                                 | Panchayat Bhawan East Karimulapur                                                                                           |
| शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal                                                       | HOD Email id :eastkarimulapur@bihar.gov.in<br>Buyer Email id: buycon457.prd.bh@gembuyer.in                                  |
| कुल मात्रा/Total Quantity                                                                                                   | 39                                                                                                                          |
| वस्तु श्रेणी /Item Category                                                                                                 | Antimicrobial Uniform for Sanitary Workers - Male Upper (Q3) , Antimicrobial Uniform for Sanitary Workers - Male Lower (Q3) |
| बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)              | 5 Lakh (s)                                                                                                                  |
| मूल उपकरण निर्माता का औसत टर्नओवर (गत 3 वर्षों का)/OEM Average Turnover (Last 3 Years)                                      | 20 Lakh (s)                                                                                                                 |
| उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service              | 1 Year (s)                                                                                                                  |
| एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover        | No                                                                                                                          |
| स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover | No                                                                                                                          |

| बिड विवरण/Bid Details                                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| विक्रेता से मांगे गए दस्तावेज़/Document required from seller                                                                                                                                                             | Experience Criteria,Past Performance,Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,OEM Annual Turnover,Additional Doc 1 (Requested in ATC),Compliance of BoQ specification and supporting document<br>*In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer |
| क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid? | No                                                                                                                                                                                                                                                                                                                                                                                                                              |
| बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension                                                                                | 3                                                                                                                                                                                                                                                                                                                                                                                                                               |
| दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended                                                                                                      | 3                                                                                                                                                                                                                                                                                                                                                                                                                               |
| ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count                                                                                                                                            | 1                                                                                                                                                                                                                                                                                                                                                                                                                               |
| विगत प्रदर्शन /Past Performance                                                                                                                                                                                          | 80 %                                                                                                                                                                                                                                                                                                                                                                                                                            |
| बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled                                                                                                                                                                       | No                                                                                                                                                                                                                                                                                                                                                                                                                              |
| बिड का प्रकार/Type of Bid                                                                                                                                                                                                | Two Packet Bid                                                                                                                                                                                                                                                                                                                                                                                                                  |
| प्राथमिक उत्पाद श्रेणी/Primary product category                                                                                                                                                                          | Antimicrobial Uniform for Sanitary Workers - Male Upper                                                                                                                                                                                                                                                                                                                                                                         |
| तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation                                                                                        | 2 Days                                                                                                                                                                                                                                                                                                                                                                                                                          |
| निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)                                     | No                                                                                                                                                                                                                                                                                                                                                                                                                              |
| Payment Timelines                                                                                                                                                                                                        | Payments shall be made to the Seller within <b>15</b> days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)                                                                                                                                                                                        |
| मूल्यांकन पद्धति/Evaluation Method                                                                                                                                                                                       | Total value wise evaluation                                                                                                                                                                                                                                                                                                                                                                                                     |
| मध्यस्थता खंड/Arbitration Clause                                                                                                                                                                                         | No                                                                                                                                                                                                                                                                                                                                                                                                                              |
| सुलह खंड/Mediation Clause                                                                                                                                                                                                | No                                                                                                                                                                                                                                                                                                                                                                                                                              |

**ईएमडी विवरण/EMD Detail**

|                   |    |
|-------------------|----|
| आवश्यकता/Required | No |
|-------------------|----|

#### ईपीबीजी विवरण /ePBG Detail

|                   |    |
|-------------------|----|
| आवश्यकता/Required | No |
|-------------------|----|

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

#### एमएसई खरीद वरीयता/MSE Purchase Preference

|                                           |    |
|-------------------------------------------|----|
| एमएसई खरीद वरीयता/MSE Purchase Preference | No |
|-------------------------------------------|----|

#### एमआईआई खरीद वरीयता/MII Purchase Preference

|                                            |    |
|--------------------------------------------|----|
| एमआईआई खरीद वरीयता/MII Purchase Preference | No |
|--------------------------------------------|----|

1. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
2. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.
3. OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
4. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.
5. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 80% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

#### Antimicrobial Uniform For Sanitary Workers - Male Upper ( 24 pieces )

#### तकनीकी विशिष्टियाँ /Technical Specifications

\* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

| विवरण/Specification                    | विशिष्टि का नाम /Specification Name                                                                                   | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)                                                                    |
|----------------------------------------|-----------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------|
| MATERIAL                               | <b>Fabric ( Composition )</b>                                                                                         | Polyester blended with Cotton                                                                                                      |
|                                        | <b>Percentage of Blending ( in case of Blended Fabric )</b>                                                           | Polyester 50 % and Cotton 50 %                                                                                                     |
|                                        | <b>Mass ( gram per square mtrs )</b>                                                                                  | 200.0 ( <b>gram</b> )                                                                                                              |
|                                        | <b>Weave</b>                                                                                                          | 2 up 1 down twill                                                                                                                  |
| SIZE                                   | <b>Size</b>                                                                                                           | Extra Large                                                                                                                        |
|                                        | <b>Length ( Front and Back) ( cm )</b>                                                                                | 77.5 cm ( Extra Large )                                                                                                            |
|                                        | <b>Width Across Chest</b>                                                                                             | 57.5 cm ( Extra Large )                                                                                                            |
|                                        | <b>Width Across Shoulder</b>                                                                                          | 47.5 cm ( Extra Large )                                                                                                            |
|                                        | <b>Sleeve Length</b>                                                                                                  | 63 cm ( Extra Large )                                                                                                              |
|                                        | <b>Arm Hole ( Round Overall )</b>                                                                                     | 55 cm ( Extra Large )                                                                                                              |
| POCKETS                                | <b>Number of Pockets</b>                                                                                              | 4 ( 2 Chest Pockets and 2 Lower Pockets )                                                                                          |
| ANTI MICROBIAL PROPERTY                | <b>Anti bacterial Efficiency against representative Pathogens Klebsiella pneumoniae- ATCC 6538</b>                    | Antibacterial Value ? 3 ( Test Method- IS/ ISO 20743-2013 ( Absorption Method )                                                    |
|                                        | <b>Anti Bacterial Efficiency against representative Pathogens Staphylococcus aureus - ATCC 4352</b>                   | Antibacterial Value ? 3 ( Test Method- IS/ ISO 20743-2013 ( Absorption Method )                                                    |
| ANTIMICROBIAL PROPERTIES AFTER WASHING | <b>Anti bacterial Efficiency against representative Pathogens Klebsiella pneumoniae- ATCC 6538 (after washing)</b>    | Antibacterial Value ? 1 ( Test Method- IS/ ISO 20743-2013, Absorption Method ) (after 50 washes as per IS: 15853 latest, Annex C ) |
|                                        | <b>Anti bacterial Efficiency against representative Pathogens Staphylococcus aureus - ATCC 4352 ( After Washing )</b> | Antibacterial Value ? 1 ( Test Method- IS/ ISO 20743-2013, Absorption Method ) (after 50 washes as per IS: 15853 latest, Annex C ) |
| SOIL RELEASE EFFICIENCY                | <b>Soil Release efficiency, Initial (Finished)( Test Method- IS: 15853 latest, Annex C )</b>                          | Stain release Grade 4                                                                                                              |
|                                        | <b>Soil Release efficiency, after 50 Washes ( Test Method- IS: 15853 latest, Annex C )</b>                            | Stain release Grade 4                                                                                                              |
| ULTRA VIOLET PROTECTION                | <b>Ultra Violet Protection Factor ( UPF ) ( Test Method- AATCC TM 183:2014 )</b>                                      | 40 - 50                                                                                                                            |

| विवरण/Specification | विशिष्टि का नाम /Specification Name                                                                                                                           | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values) |
|---------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------|
| OTHER REQUIERMENTS  | <b>Dimensional stability to washing, Shrinkage or Elongation Percentage, max ( IS 2977 latest), in lengthwise and widthwise direction</b>                     | 2                                                               |
| LOGO AND MARKING    | <b>Logo/ Totem Marking</b>                                                                                                                                    | As per buyer's requirements                                     |
|                     | <b>Type of Logo</b>                                                                                                                                           | Embroidery                                                      |
| TEST REPORT         | <b>Availability of Test Report from designated AHSP/ NABL/ ILAC accredited or Central Government Lab to prove conformity of products to the specification</b> | Yes                                                             |
| ADVANCE SAMPLE      | <b>Agree to provide Advance Sample(s) for buyer's approval before commencement of supply</b>                                                                  | Yes                                                             |

**Additional Specification Parameters - Antimicrobial Uniform For Sanitary Workers - Male Upper ( 24 pieces )**

| Specification Parameter Name | Bid Requirement (Allowed Values) |
|------------------------------|----------------------------------|
| USES                         | SANITATION WORKER DRESS UNIFORM  |

\* Bidders offering must also comply with the additional specification parameters mentioned above.

**परिषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity**

| क्र.सं./S.No. | परिषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer | पता/Address                              | मात्रा /Quantity | डिलीवरी के दिन/Delivery Days |
|---------------|---------------------------------------------------------|------------------------------------------|------------------|------------------------------|
| 1             | Vinod Kumar Gond                                        | 854117,PANCHAYAT BHAWAN EAST KARIMULAPUR | 24               | 15                           |

**Antimicrobial Uniform For Sanitary Workers - Male Lower ( 15 pieces )**

**तकनीकी विशिष्टियाँ /Technical Specifications**

[\\* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

| विवरण/Specification                    | विशिष्टि का नाम /Specification Name                                                                                   | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)                                                    |
|----------------------------------------|-----------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|
| MATERIAL                               | <b>Fabric ( Composition )</b>                                                                                         | Polyester blended with Cotton                                                                                      |
|                                        | <b>Percentage of Blending ( in case of Blended Fabric )</b>                                                           | Not applicable                                                                                                     |
|                                        | <b>Mass ( gram per square mtrs )</b>                                                                                  | 180.0 (gram)                                                                                                       |
|                                        | <b>Weave</b>                                                                                                          | 2 up 1 down twill                                                                                                  |
| SIZE                                   | <b>Size</b>                                                                                                           | Medium                                                                                                             |
|                                        | <b>Full Length</b>                                                                                                    | 101.5 cm ( Medium )                                                                                                |
|                                        | <b>Waist ( Overall )</b>                                                                                              | 85.0 cm ( Medium )                                                                                                 |
|                                        | <b>Thigh ( Overall )</b>                                                                                              | 62.5 cm ( Medium )                                                                                                 |
|                                        | <b>Leg Opening ( overall )</b>                                                                                        | 41.5 cm ( Medium )                                                                                                 |
| POCKETS                                | <b>Number of Pockets</b>                                                                                              | 2 ( Side Pockets )                                                                                                 |
| WAIST BAND                             | <b>Waist Band Length</b>                                                                                              | 59.0 cm ( Medium )                                                                                                 |
|                                        | <b>Technical Requirements of Waist Band</b>                                                                           | not applicable                                                                                                     |
| ANTI MICROBIAL PROPERTY                | <b>Anti bacterial Efficiency against representative Pathogens Klebsiella pneumoniae- ATCC 6538</b>                    | Bacterial Reduction more than 99.9% ( Test Method AATCC 100 )                                                      |
|                                        | <b>Anti Bacterial Efficiency against representative Pathogens Staphylococcus aureus - ATCC 4352</b>                   | Bacterial Reduction more than 99.9% ( Test Method AATCC 100 )                                                      |
| ANTIMICROBIAL PROPERTIES AFTER WASHING | <b>Anti bacterial Efficiency against representative Pathogens Klebsiella pneumoniae- ATCC 6538 (after washing)</b>    | Bacterial Reduction more than 99% ( Test Method AATCC 100 ) (after 100 washes as per IS: 15853 latest, Annex C ) ) |
|                                        | <b>Anti bacterial Efficiency against representative Pathogens Staphylococcus aureus - ATCC 4352 ( After Washing )</b> | Bacterial Reduction more than 90% ( Test Method AATCC 100 ) (after 100 washes as per IS: 15853 latest, Annex C ) ) |
| SOIL RELEASE EFFICIENCY                | <b>Soil Release efficiency, Initial (Finished)( Test Method- IS: 15853 latest, Annex C )</b>                          | Stain release Grade 4                                                                                              |
|                                        | <b>Soil Release efficiency, after 50 Washes ( Test Method- IS: 15853 latest, Annex C )</b>                            | Stain release Grade 4                                                                                              |
| ULTRA VIOLET PROTECTION                | <b>Ultra Violet Protection Factor ( UPF ) ( Test Method- AATCC TM 183:2014 )</b>                                      | Not Applicable                                                                                                     |

| विवरण/Specification | विशिष्टि का नाम /Specification Name                                                                                                                           | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values) |
|---------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------|
| OTHER REQUIERMENTS  | <b>Dimensional stability to washing, Shrinkage or Elongation Percentage, max ( IS 2977 latest), in lengthwise and widthwise direction</b>                     | 1                                                               |
| LOGO AND MARKING    | <b>Logo/ Totem Marking</b>                                                                                                                                    | No                                                              |
|                     | <b>Type of Logo</b>                                                                                                                                           | Not applicable                                                  |
| TEST REPORT         | <b>Availability of Test Report from designated AHSP/ NABL/ ILAC accredited or Central Government Lab to prove conformity of products to the specification</b> | Yes                                                             |
| ADVANCE SAMPLE      | <b>Agree to provide Advance Sample(s) for buyer's approval before commencement of supply</b>                                                                  | Yes                                                             |

**Additional Specification Parameters - Antimicrobial Uniform For Sanitary Workers - Male Lower ( 15 pieces )**

| Specification Parameter Name | Bid Requirement (Allowed Values)       |
|------------------------------|----------------------------------------|
| USES                         | SANITATION WORKER SAFETY KIT EQUIPMENT |

\* Bidders offering must also comply with the additional specification parameters mentioned above.

**परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity**

| क्र.सं./S.N o. | परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer | पता/Address                              | मात्रा /Quantity | डिलीवरी के दिन/Delivery Days |
|----------------|---------------------------------------------------------|------------------------------------------|------------------|------------------------------|
| 1              | Vinod Kumar Gond                                        | 854117,PANCHAYAT BHAWAN EAST KARIMULAPUR | 15               | 15                           |

**Special terms and conditions-Version:1 effective from 04-05-2020 for category Antimicrobial Uniform for Sanitary Workers - Male Upper**

1. After award of contract, when specified in the Bid, Seller shall have to get Advance Sample(s) approved by the Buyer before starting Bulk Supplies. The Seller shall submit the Advance Sample(s) within 7 days from the date of placement of the order. The buyer shall approve or otherwise the Advance Sample(s) within 7 days from the date of receipt of the Advance Sample(s).

**Special terms and conditions-Version:1 effective from 04-05-2020 for category Antimicrobial**

## Uniform for Sanitary Workers - Male Lower

1. After award of contract, when specified in the Bid, Seller shall have to get Advance Sample(s) approved by the Buyer before starting Bulk Supplies. The Seller shall submit the Advance Sample(s) within 7 days from the date of placement of the order. The buyer shall approve or otherwise the Advance Sample(s) within 7 days from the date of receipt of the Advance Sample(s).

## क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

### 1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be  $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$ , subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

### 2. Scope of Supply

Scope of supply (Bid price to include all cost components) : Only supply of Goods

### 3. Certificates

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

### 4. Certificates

ISO 9001: The bidder or the OEM of the offered products must have ISO 9001 certification.

### 5. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

### 6. Service & Support

Availability of Service Centres: Bidder/OEM must have a Functional Service Centre in the State of each Consignee's Location in case of carry-in warranty. (Not applicable in case of goods having on-site warranty). If service center is not already there at the time of bidding, successful bidder / OEM shall have to establish one within 30 days of award of contract. Payment shall be released only after submission of documentary evidence of having Functional Service Centre.

### 7. Service & Support

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

## अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer ,is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid.All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly



and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

**All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.**

**For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.**

**The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:**

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

**All obligations relating to wages, social security, safety, working conditions, industrial relations etc.**

**and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.**

**This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.**

**However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.**

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

**---धन्यवाद/Thank You---**